

Prakash Khare v. The Collector Kanpur Nagar

High Court of Judicature at Allahabad · Division Bench · 22 April 2019 · Writ - C No. 13779 of 2019 · **Writ disposed; petitioner relegated to Clause 6.5.B for bill correction.**

HEADNOTE

A consumer's writ seeking correction of a Kanpur Electric Supply Company Limited electricity bill was disposed of without examining the bill. The Division Bench held that the petitioner may apply to the licensee under Clause 6.5.B of the Electricity Supply Code, 2005, and directed that any such application filed within a week of the certified copy be decided in accordance with law within 15 days.

FACTUAL SUMMARY

Prakash Khare filed Writ-C No. 13779 of 2019 in the Allahabad High Court against the Collector, Kanpur Nagar and two others, including Kanpur Electric Supply Company Limited as respondent no.2. He sought correction of an electricity bill raised by KESCO. The petition was first listed on 19 April 2019 and heard as a fresh matter on 22 April 2019. The Division Bench of Bharati Sapru and Vivek Varma, JJ. heard counsel for the petitioner, the State, and the licensee. The extracted order does not set out the billing period or the amount in dispute.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5B

bill-correction-by-licensee

HOLDING

A writ seeking correction of an electricity bill is disposed of by relegating the consumer to Clause 6.5.B of the Electricity Supply Code, 2005; the petitioner may apply to the licensee, and an application made within a week of the certified copy shall be decided by the licensee's appropriate authority in accordance with law within 15 days. The Court did not decide whether the bill was incorrect. ¶ 1

FLAG Order cites Clause 6.5.B (catalog 6.5B / 6.5(b)).

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL

Merits of the billing dispute left to the licensee's Clause 6.5.B authority. ¶ 1